Berkeley International School
Child Protection and Safety Policy

1. Rationale

Every child has the right to feel safe, respected, and valued at Berkeley International School. Our Child Protection policy is supported by Cambodian national law and the four pillars of the United Nations Convention on the Rights of the Child (**UNCRC**): ***right to survival, right to development, right to protection,*** and ***right to participation***. Berkeley's policy translates Cambodian national law and the UNCRC pillars into actionable commitments for our school community. This ensures that Child Protection is a lived ethical standard and more than a legal requirement.

2. Purpose

The purpose of this policy is to ensure the well-being and safety of all children enrolled or visiting any Berkeley campus. It provides clear guidelines to all staff and anyone associated with Berkeley for identifying, responding to, and reporting suspected child abuse or neglect. It's aligned with Cambodian national law and the UNCRC, with particular emphasis on the right to protection from all forms of neglect, abuse, and violence.

3. Scope

This policy applies to:

3.1 All Berkeley educators, administrators, office staff, support staff, maintenance staff, and guards

3.2 All interns, volunteers, and external service providers working on Berkeley campuses

3.3 School-sponsored activities and extracurricular activities, including academic competitions, sports competitions, field trips, and overnight excursions

3.4 All Berkeley learners, visiting children, and any child participating in any school-run programs or activities

3.5 Conduct occurring on any Berkeley campus, during school-related activities, and in digital space, whether on a Berkeley-owned or personally owned device

4. Definitions

For the coverage of this policy, the following definitions will apply:

4.1 **Child** - any human being 18 years of age or older in accordance with Article 1 of the UNCRC. This includes all learners enrolled in Early Years, Primary and Secondary programs at all Berkeley campuses

4.2 **Physical Abuse** - any deliberate act of force that causes or has the potential to cause physical injury, pain, or impairment to a child

4.3 **Emotional & Verbal Abuse** - persistent behaviour that harms a child's emotional health, self-worth, or psychological development

4.4 **Sexual Abuse** - forcing or enticing a child to participate in sexual activities, whether or not the child is aware of what is happening

4.5 **Neglect** - the persistent failure to meet a child's basic emotional, educational, physical, or medical needs resulting in serious harm to the child's overall development

5. General Principles

5.1 It is paramount that all decisions prioritise the well-being and safety of the child

5.2 Berkeley affirms the 4 pillar rights of children according to the UNCRC

- **Right to Survival**
- **Right to Development**
- **Right to Protection**
- **Right to Participation**

5.3 All children have equal protection regardless of gender, race, age, religion, socioeconomic status, sexual orientation, or disability

5.4 All information related to child protection cases at Berkeley is confidential and only shared on a need-to-know basis

5.5 All staff receive required training on maintaining professional boundaries, recognising signs of abuse, and reporting protocols. Failure to report on any suspected abuse is considered a disciplinary offence

6. Key Guidelines

6.1 All Berkeley International School personnel are strictly prohibited from contacting any learner on any social media platform. This extends to messaging platforms or contact by phone call. All communications must be done through the school's official Telegram accounts, email, and Google Classroom.

6.2 Eliciting other means of communication with learners by any Berkeley personnel is considered a disciplinary offence

7. Reporting Protocols

7.1 Any disclosed, discovered, or suspected abuse must be reported immediately via Telegram to the Campus Director. In their absence, report to either the International or Khmer Program directors

7.2 Reports of abuse must be treated confidentially and thoroughly investigated. Any discussion

of reported incidents outside of need-to-know will be considered a disciplinary offence
7.3 Berkeley will fully cooperate with external agencies and relevant authorities when needed

8. Code of Conduct

8.1 The safety and welfare of every child must be prioritised above all other considerations.
8.2 Never engage in any form of physical, emotional, or sexual abuse, neglect, or exploitation of any child. Touching a child in any inappropriate, suggestive, or sexual manner is considered grounds for immediate dismissal from Berkeley and reporting to the proper authorities
8.3 Avoid any private or unobserved one-on-one contact with any child; all one-on-one interactions should only occur if absolutely necessary, in an open and visible area or in the presence of another adult
8.4 Maintain appropriate physical boundaries, avoiding any unnecessary or inappropriate physical contact with any child
8.5 Developing, or appearing to develop, any romantic, intimate, or sexually suggestive relationship with a child is strictly forbidden. Violation of this code is considered grounds for immediate dismissal from Berkeley and reporting to the proper authorities
8.6 Sharing or requesting personal contact information, including phone numbers, email addresses, and social media user names, with or from a child outside of school-related communication channels is prohibited. Violation of this code is considered a disciplinary offence
8.7 Immediately report any suspicious disclosure, or evidence of child neglect or abuse to a Campus Director or Program Coordinator
8.8 Never use humiliation, corporal punishment, or any other form of degrading treatment as a means of discipline
8.9 Never transport a child alone in any vehicle
8.10 Respect a child's right to privacy during care, changing, or after swimming; ensure assistance with this is only provided as necessary and in a dignified manner
8.11 Making sexually suggestive comments, jokes, gestures, or sharing sexually explicit material in any form with or around children is considered grounds for immediate dismissal from Berkeley and reporting to the proper authorities
8.12 Do not take, possess, or distribute photographs or videos of children in any format without documented parental consent; any images should be taken for professional use only
8.13 Use of alcohol, illegal substances, or being under their influence while in the care of any child at any Berkeley campus is grounds for immediate dismissal
8.14 Challenge and report any colleague's behaviour that violates or appears to violate Berkeley's Child Protection standards and policies
8.15 Thorough background checks are conducted on all potential employees
8.16 References are required and thoroughly checked
8.17 All new hires are required to sign our Child Protection Policy Agreement

9. Specific Procedures

9.1 **Tutoring:** No Berkeley employee should ever be alone with a child that isn't their own, anywhere that can't be easily seen by others. Educators who are tutoring in groups of three (3)

or fewer should ensure their room door is open. Open areas for one-on-one tutoring are advised.

9.2 **Learner Clothing Changes:** Learners who are kinder age or older who can change themselves should be encouraged and allowed to change their clothes in a bathroom or room with no CCTV. Learners should be separated by gender, with an adult waiting outside to assist as needed.

9.3 **Learner Restraint:** In certain situations, Berkeley acknowledges that physically restraining a learner may be needed to ensure their safety and/or the safety of others. Examples of this include learners running out of their classrooms, running outside the front gate, expressing extreme anger towards others through physical violence, and intentionally self-harming. When restraint is needed, it must be applied appropriately by an educator, teaching assistant or staff member. Under no circumstances should restraint involve tying or otherwise securing a learner to any object, and the level of force should be no greater than what is needed to protect the learner and those around them. If a learner must be completely separated in another room due to extreme/aggressive behaviour, the door must remain open, and two staff members must stay with the learner until they can rejoin their class.

9.4 **Safe Touch:** Starting in Early Years, educators should discourage learners from sitting on adults' laps except in situations of high distress requiring emotional support. In those situations, the child should sit sideways across the educator's lap. Physical contact should never be forced on a child, and educators must always pay attention to how a child responds to any touch initiated by the educator. Given that young learners sometimes seek touch for reassurance, confirmation, and other valid reasons, educators can follow this basic guideline: only use a level of contact that they would be comfortable using in front of the child's parents, Program Coordinators, or the Campus Director.

10. Internal Behaviours

10.1 **Pornography:** All staff members and educators are strictly forbidden from accessing, viewing, or displaying any form of pornographic material, regardless of format or device, while on any property or campus of Berkeley International School. This includes, but is not limited to, printed images, videos, digital media, or online content.
Possession and display of any material that depicts, appears to depict, or represents any individual as a child, including content that involves people portraying children, who look like children, or who are presented as being children, is expressly prohibited under all circumstances.
Any educator or staff member found in breach of this policy will be subject to immediate dismissal and referral to the appropriate legal authorities.

10.2 **Learner Discipline:** Berkeley International School has a ***zero-tolerance policy*** for the application of unreasonable force, intimidation, fear, and corporal punishment of any kind by any educator, administrator, or school staff at any level. This includes but is not limited to:

pushing, pulling, pinching, ear twisting, hair pulling, slapping, spanking or otherwise hitting.
If a parent or guardian requests corporal discipline for their child, the educator must advise the parent that Berkeley does not allow physical discipline of any learner. The educator should document this conversation and report it to the Campus Director or a Program Coordinator after the conversation with the parent/guardian.
If any employee witnesses another employee physically disciplining a learner, they're expected to inform the Campus Director or a Program Coordinator immediately. Failure to do so is considered a breach of this policy and is subject to disciplinary measures.
Reading Berkeley's complete Learner Disciplinary Policy is required by all educators and can be found here: BIS Tiered Restorative Practices Program

10.3 **Language:** In compliance with global child protection standards, all educators and staff must recognise that their use of any inappropriate language constitutes a form of emotional abuse. Every employee is required to carefully choose their words when interacting with learners to ensure all communication is suitable for the learner's development stage. Educators are primary role models, and learners often imitate what educators expose them to. Under no circumstances should educators direct aggressive, condescending, sarcastic, belittling, or humiliating remarks toward any learner. Such behaviour is considered emotionally abusive.

11. Physical & Emotional Peer-to-Peer Abuse

Learner-to-learner abuse can take on various forms. Gender related issues often play a significant role. Learners may experience serious harm due to aggressive behaviours or bullying actions of their peers, whether physical, emotional, or sexual. This includes gender-based violence, sexual assault, "sexting" (digital sharing of explicit language and/or images), sexual bullying, other forms of sexual misconduct, abusive teenage relationships, exploitation, and serious youth violence.

All educators and staff members are responsible for identifying, evaluating, and managing any emotional and physical risks that learners may pose to themselves or others. It's important to note that a learner causing harm to another learner doesn't necessarily mean there's abuse taking place. When evaluating, consider:

- ➔ Power gaps between learners (differences in age, size, strength, development)
- ➔ Whether the responsible learner has shown repeated patterns of harmful behaviour towards others
- ➔ Concerns regarding the intentions of the responsible learner

Educators must be able to recognise that learners are capable of abusing their peers, and this shouldn't be dismissed as "part of growing up", "part of the bonding process", or "joking".

12. Recognising Abuse Towards SEN (Special Education Needs) Learners

All educators are expected to recognise signs of potential abuse or neglect towards SEN learners as part of their professional training and ongoing safeguarding duties. All staff must apply the same level of scrutiny to SEN learners as to any other learner, while at the same time considering vulnerabilities. It's also vital that staff take into account certain biases that exist:

- **Assumptions about impairment** - staff must not assume that changes in mood, behaviour, or physical injuries are the result of a learner's SEN. This can lead to failures in proper recognition, evaluation, and reaction. Any changes must be approached with an open mind.
- **Reluctance to challenge caregivers** - empathy for the perceived difficulties of caring for a SEN learner shouldn't ever prevent educators or staff from raising concerns. Duty of care to protect all children should override any personal discomfort with questioning caregivers.
- **Communication barriers** - SEN learners often have difficulties communicating about abuse, sometimes due to a lack of understanding of what abuse is, shame, or language barriers. Educators should train to recognise non-verbal cues, such as behavioural changes, changes in appearance, or other changes that may signal distress or harm.
- **Multiple caregiver dependence:** SEN learners often have more than one caregiver they depend on, which can increase the potential risk of exposure to abusive behaviour from more than one source.

Educators and staff are expected to apply the protection principles of this policy consistently, record and report any concerns regarding possible SEN learner abuse.

13. Allegations of Abuse

13.1 **Allegation/Disclosure of Abuse from a Learner:** When a learner discloses allegations of any form of abuse to an educator, the following steps should be taken:

- ➢ Have a pen and paper ready for taking notes; list the event and time details of the incident as best as possible
- ➢ Don't give English or Khmer words for what you infer they mean, or offer suggestions to help the learner say something difficult
- ➢ Bring the language you use down to the learner's level
- ➢ Don't use yes/no questions
- ➢ Don't use a lot of questions in an interview; encourage the learner to keep talking by repeating what they've said
- ➢ Let the learner know you are listening and hearing what they are saying
- ➢ Reassure the learner that they've done the right thing in reporting; affirm they're ethical and resilient
- ➢ Let the learner know you believe them; affirm with a talk path, e.g. "I'm really glad you told me this. Thank you."
- ➢ Explain the next steps: speaking with the Campus Director, etc.
- ➢ Keep the entire conversation confidential; non-disclosure to non-involved parties
- ➢ Be honest, responsive, and reassuring

14. Policy Details

This policy will be reviewed annually and amended in accordance with any changes in Cambodian National Law and UNCRC guidelines.

To maintain an environment where every child can grow and learn, Berkeley International School enforces this policy stringently. Any breaches of these policies are closely scrutinised and can lead to disciplinary action, up to and including dismissal from Berkeley and notification of the appropriate authorities. All Berkeley International School personnel are required to read this policy in full and sign our BIS Child Protection Policy Agreement : 1. Upon signing the contract of employment with Berkeley International School or, 2. At an alternative appropriate time provided by a member of the Berkeley International School management team.

Implementation Date: AY 2026-2027 (Proposed)

Policy Initial Development:	Policy Revision & Review:	Sources Consulted:
● Martín Islas (‘24)	● Frank Wiedner (‘26) ● Sodavit Pang ● Sam Chay ● Ratha Ork	● Cambodia National Council for Children ● United Nations Convention on the Rights of the Child

Approved by:

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